says the Gyanvapi suit should have been dismissed at inception. Yet, several courts have accepted such petitions, often giving in to the loopholes. Clause 4(3)(a) is a favourite, because any structure over 100 years old satisfies the definition of an 'ancient monument'. "That can take any number of old buildings outside the purview of the Places of Worship Act," points out Professor Faizan Mustafa, vice-chancellor, NALSAR University of Law.

Most legal experts say such a literal interpretation of 4(3)(a) goes against its intended meaning. "Section 3 is a complete bar... no conversion from Worship A to Worship B. And 4(1) protects the 'religious character' of a site: so you can't alter it even to an 'areligious' one—4(3)(a) qualifies this for heritage monuments; say, for an old masjid where the footfalls imperil the structure. It's crystal clear that 4(3)(a) cannot override the complete bar under Section 3," says Farasat. Supreme Court advocate Vishwanath Chaturvedi, too, feels the archaeology argument is unsustainable, because the AMASR Act disallows religious use of heritage sites. Govind Mathur, former Allahabad High Court chief justice, says primacy must be given to the objects and intent of the Places of Worship Act. "Its purpose—not to allow a repeat of the appropriation of the Babri mosque—must be kept in mind," he says. Supreme Court lawyer Aruneshwar Gupta, meanwhile, foresees more petitions demanding the revocation of the Places of Worship and even the AMASR Act. But attention now is on the more sophisticated gambit: how the judicial system seems able to bypass an existing law while working within it. Allowing an archaeological examination, as Farasat says, can only serve to whip up a public mood that cannot be satisfied under the Places of Worship Act. Suddenly, what seemed like an impregnable constitutional fortress, with the Supreme Court's seal, appears besieged from within and without.

INCONVENIENT TRUTHS

Historians of all hues acknowledge the bald fact that, shorn of all context, temple destruction was a fact of life—both in cases of rampant Muslim rapine during the Slave Dynasty, and as a general mode of doing medieval politics that was in no way exclusively Muslim. A fact many Hindutva voices choose to ignore. In the celebrated 12th century Sanskrit text *Rajatarangini*, Kalhana records how his Kayastha administrators advise King Sankaravarman of 9th century Kashmir to "plunder temples and oppress his subjects in order to extract more money from the land". And two centuries later, of King Harsha, he writes: "As he was addicted to extravagant expenditure upon various corps of his army, his thoughts...became in time firmly fixed upon the spoilation of temples. Then the greedy-minded (king) plundered from all temples the wonderful treasures former kings had bestowed there. In order to get hold of the statues of gods, too, when the treasures had been carried off, he appointed Udayaraja as 'prefect for the overthrow of divine images' (*devotpaatananayaka*)." Other examples abound across



J.P. NADDA
President, BJP, in a press conference

"THESE ISSUES ARE DECIDED BY THE COURT AND THE CONSTITUTION AND THE BJP IMPLEMENTS IT IN LETTER AND SPIRIT"



SUNIL AMBEKAR
Prachar Pramukh, RSS

"We should let the truth come out. It's time we put historical facts in the right perspective before society"

the map, including the Maratha pindaris who sacked Sringeri math in 1791. The erasure of Buddhism from the subcontinent, a starkly conspicuous fact, was not likely a mere feat of philosophical *tarka* either: temple conversion, non-violent or otherwise, has been a well-reasoned line of speculation all the way from ancient Taxila to medieval Kerala. But those who speak on behalf of the 'Hindu mind'—alive only to stereotypes entrenched by two centuries of colonially motivated scholarship—articulate a "civilisational hurt" singularly on account of the Islamic encounter. And that hurt is being expressed as a dam-burst of revanchist anger.

Gyanvapi is also a classic case study of how difficult it is to frame a dispute in its full historical context. One of the core strands of faith here is that the site marks the exact spot where Shiva manifested himself in the form of a *swayambhu jyotirlinga*. This links the idea of an eternal temple to that of a primordial, unchanging, eternal Kashi—what sociologist Deepak Mehta, in the context of Ayodhya, called "the link of architectural place to mythic time". This also yields the inference that the temple Aibak is said to have demolished in 1194 stood on the same site: the inaugural point of a narrative about a sacred venue withstanding a series